

SENATE BILL 785

By Walley

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7 and Title 13, relative to
planning regulations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 13-3-403, is amended by adding the following as a new subsection:

(e)

(1) A regional planning commission shall not require more than one (1) means of ingress and egress into a proposed subdivision unless the proposed subdivision has at least seventy (70) residential dwellings.

(2) A requirement in violation of subdivision (e)(1) is void.

SECTION 2. Tennessee Code Annotated, Section 13-4-303, is amended by adding the following as a new subsection:

(e)

(1) A municipal planning commission shall not require more than one (1) means of ingress and egress into a proposed subdivision unless the proposed subdivision has at least seventy (70) residential dwellings.

(2) A requirement in violation of subdivision (e)(1) is void.

SECTION 3. Tennessee Code Annotated, Title 13, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) A county legislative body shall not require more than one (1) means of ingress and egress into a proposed subdivision unless the proposed subdivision has at least seventy (70) residential dwellings.

(b) A requirement in violation of subsection (a) is void.

SECTION 4. Tennessee Code Annotated, Title 13, Chapter 7, Part 2, is amended by adding the following as a new section:

(a) A chief legislative body shall not require more than one (1) means of ingress and egress into a proposed subdivision unless the proposed subdivision has at least seventy (70) residential dwellings.

(b) A requirement in violation of subsection (a) is void.

SECTION 5. Tennessee Code Annotated, Title 13, Chapter 7, Part 3, is amended by adding the following as a new section:

(a) A board of aldermen, board of commissioners, or other chief legislative body of any municipality shall not require more than one (1) means of ingress and egress into a proposed subdivision unless the proposed subdivision has at least seventy (70) residential dwellings.

(b) A requirement in violation of subsection (a) is void.

SECTION 6. This act takes effect July 1, 2025, and applies to planning regulations enacted or amended on or after that date.